

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK----- X
DOROTHEA MARTIZ as Attorney-in-Fact for JOSHUA
MARTIZ,

SUMMONS

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

THE CITY OF NEW YORK, NYPD OFFICER OSCAR
POLANCO, Shield No. 15392, NYPD SERGEANT
BENJAMIN PALEY, Shield 5586, and NYPD POLICE
OFFICERS JOHN/JANE DOE NUMBERS 1-10,Plaintiff designates New York
County as the place of trial.Defendants.
----- X**To the above named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 28, 2021

Yours, etc.



CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorneys for Plaintiffs
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
OFFICER OSCAR POLANCO, 4295 Broadway, NY, NY 10033
SERGEANT BENJAMIN PALEY, 315 Hudson Street, 3rd Floor, NY, NY 10013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

DOROTHEA MARTIZ as Attorney-in-Fact for JOSHUA
MARTIZ,

INDEX NO.:

Plaintiffs, VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER OSCAR
POLANCO, Shield No. 15392, NYPD SERGEANT
BENJAMIN PALEY, Shield 5586, and NYPD POLICE
OFFICERS JOHN/JANE DOE NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff DOROTHEA MARTIZ as Attorney-in-Fact for JOSHUA MARTIZ, by their attorneys, Caitlin Robin & Associates, PLLC, as and for their Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff JOSHUA MARTIZ's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 21, 2020, at approximately 5:20 p.m., Plaintiff JOSHUA MARTIZ, while lawfully inside the building at 475 West 186 Street, County of New York, New York, was subject to an unlawful stop, question, frisk, search, false arrest, excessive force, and false imprisonment by the defendant New York City police officers. In addition, Plaintiff JOSHUA MARTIZ suffered injuries to his body, face and to his wrists, as well as mental and emotional injury. Plaintiff JOSHUA MARTIZ was unlawfully imprisoned the Police Precinct, at NY Presbyterian Hospital, and at Central Bookings for approximately 48 hours before he was released. Plaintiff JOSHUA MARTIZ was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802. Plaintiff JOSHUA MARTIZ was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, in violation of the Fourth, Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff DOROTHEA MARTIZ is a resident of the state of New York.
3. Plaintiff JOSHUA MARTIZ is a resident of the state of New York.
4. NYPD OFFICER OSCAR POLANCO, SHIELD NO. 15392, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD OFFICER OSCAR POLANCO, SHIELD NO. 15392, is being sued in his individual and official capacities.
6. NYPD SERGEANT BENJAMIN PALEY, SHIELD NO. 5586, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. NYPD SERGEANT BENJAMIN PALEY, SHIELD NO. 5586, is being sued in his individual and official capacities.
8. NYPD SERGEANT BENJAMIN PALEY, SHIELD NO. 5586, was at all times relevant herein, assigned to the 34th Precinct.
9. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
10. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 are being sued in their individual and official capacities.
11. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 were at all times relevant herein, assigned to the 34th Precinct.
12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. Plaintiff JOSHUA MARTIZ in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

15. In accordance with New York State law and General Municipal Law Section 50, Plaintiff JOSHUA MARTIZ testified at a hearing held pursuant to General Municipal Law Section 50-H on July 23, 2021.

16. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff JOSHUA MARTIZ has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On August 21, 2020, at approximately 5:20 P.M., Plaintiff JOSHUA MARTIZ was lawfully inside the building at 475 West 186 Street, County of New York, New York, when defendant police officers unlawfully stopped, questioned, searched, and falsely arrested Plaintiff JOSHUA MARTIZ without probable cause or legal justification.

20. Plaintiff JOSHUA MARTIZ was accompanied by a friend, Jose Fuentes, who lives at the building at 475 West 186th Street.

21. Plaintiff JOSHUA MARTIZ and Jose Fuentes were going to see Fuentes' father at his apartment, located on the second or third floor of the building.

22. Once Plaintiff JOSHUA MARTIZ entered the hallway, Plaintiff JOSHUA MARTIZ saw numerous defendant Police Officers and paramedics crowded into the hallway around a door.

23. Plaintiff JOSHUA MARTIZ later learned this door was the entrance to Jose Fuentes' father's apartment.

24. Defendant Police Officers were banging on the door very hard, so Plaintiff JOSHUA MARTIZ decided not to go inside.

25. However, Jose Fuentes' father saw that Jose Fuentes was outside and so opened the door.

26. When the door was opened, the police grabbed Jose Fuentes' father and threw him on the floor.

27. Defendant Police Officers ordered Plaintiff JOSHUA MARTIZ and Jose Fuentes to back up, but they were in a narrow hallway surrounded by police officers and paramedics.

28. Plaintiff JOSHUA MARTIZ was trying to back up when suddenly he was punched in the face by one of the defendant Police Officers.

29. The Defendant Police Officer who punched Plaintiff JOSHUA MARTIZ is a white officer, short in stature.

30. The same defendant Police Officer then tased Plaintiff JOSHUA MARTIZ.

31. The taser caused Plaintiff JOSHUA MARTIZ to fall to the floor.

32. While Plaintiff JOSHUA MARTIZ was laying on the floor, he was handcuffed by defendant Police Officers and subsequently carried outside to a waiting ambulance.

33. Plaintiff JOSHUA MARTIZ at this time has taser prongs stuck in his body and was bleeding from his nose.

34. Plaintiff JOSHUA MARTIZ did not resist arrest.

35. Plaintiff JOSHUA MARTIZ did not assault any Police Officers

36. Plaintiff JOSHUA MARTIZ did not harass any Police Officers.

37. Plaintiff JOSHUA MARTIZ did not intentionally obstruct, interfere, impair, or otherwise prevent defendant Police Officers from their official duties.

38. Plaintiff JOSHUA MARTIZ was taken by ambulance to New York Presbyterian, where he was accompanied by defendant Police Officers.

39. After treatment for the protruding taser prongs and several hours at New York Presbyterian hospital, defendant officers took Plaintiff JOSHUA MARTIZ to the 34 Precinct.

40. At the 34th Precinct, Plaintiff JOSHUA MARTIZ was searched, placed into a holding cell, had his fingerprints and photograph taken, and was questioned by a detective.

41. Subsequently, Plaintiff JOSHUA MARTIZ was taken downtown to Central Booking and eventually granted release on his own recognizance.

42. All told, Plaintiff JOSHUA MARTIZ spend approximately 48 hours in custody.

43. Plaintiff JOSHUA MARTIZ was charged with Resisting Arrest, Assault in the Third Degree, Obstruction of Governmental Administration in the Second Degree, and Harassment in the Second Degree.

44. These charges originated in a complaint sworn by defendant Officer Polanco and based on the statements on defendant Officer Snyder and defendant Sergeant Paley.

45. On information and belief, Officer Polanco communicated these false allegations to the New York County's Early Case Assessment Bureau on August 21, and then on numerous occasions subsequently, reiterated these false allegations to Assistants with the New York County District Attorney's Office.

46. Plaintiff JOSHUA MARTIZ had to go back to court for appearances more than two times while the case was pending.

47. On January 20, 2021, the case against Plaintiff JOSHUA MARTIZ was dismissed and sealed.

48. At no time relevant herein did Plaintiff JOSHUA MARTIZ commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff JOSHUA MARTIZ of committing a crime or violating the law in any way.

49. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff JOSHUA MARTIZ or from a location that was in Plaintiff JOSHUA MARTIZ's possession, custody, or control.

50. Nevertheless, Plaintiff JOSHUA MARTIZ was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, and then unlawfully fingerprinted, photographed and searched.

51. Some of the police officer defendants observed the violation of Plaintiff JOSHUA MARTIZ's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff JOSHUA MARTIZ the right to due process and a fair trial.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

52. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff JOSHUA MARTIZ to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff JOSHUA MARTIZ's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

54. As a result of the aforementioned conduct of defendants, Plaintiff JOSHUA MARTIZ sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

55. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff JOSHUA MARTIZ and, in fact, confined Plaintiff JOSHUA MARTIZ, and Plaintiff JOSHUA MARTIZ was conscious of the confinement. In addition, Plaintiff JOSHUA MARTIZ did not consent to the confinement and the confinement was not otherwise privileged.

57. As a direct and proximate result of such acts, defendants deprived Plaintiff JOSHUA MARTIZ of his rights under the laws of the State of New York and the United States Constitution.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

60. As a result of the aforementioned conduct of defendants, Plaintiff JOSHUA MARTIZ sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

61. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The illegal approach, pursuit, stop, questioning, and frisk employed by defendants herein terminated Plaintiff JOSHUA MARTIZ's freedom of movement through means intentionally applied.

63. The conduct of defendants in stopping, frisking, and searching Plaintiff JOSHUA MARTIZ was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

64. As a direct and proximate result of such acts, defendants deprived Plaintiff JOSHUA MARTIZ of his rights under the laws of the State of New York.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

67. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiff JOSHUA MARTIZ's freedom of movement through means intentionally applied.

69. Defendants lacked probable cause to search Plaintiff JOSHUA MARTIZ.

70. As a direct and proximate result of such acts, defendants deprived Plaintiff JOSHUA MARTIZ of his rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, Plaintiff JOSHUA MARTIZ sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

74. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff JOSHUA MARTIZ, JOSHUA MARTIZ. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff JOSHUA MARTIZ and violated Plaintiff JOSHUA MARTIZ's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

76. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff JOSHUA MARTIZ and violated Plaintiff JOSHUA MARTIZ's statutory and common law rights as guaranteed Plaintiff JOSHUA MARTIZ by the laws and Constitution of the State of New York.

77. As a direct and proximate result of such acts, defendants deprived Plaintiff JOSHUA MARTIZ of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, Plaintiff JOSHUA MARTIZ sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

81. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

83. As a result of the aforementioned conduct of defendants, Plaintiff JOSHUA MARTIZ sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

84. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. The defendants that did not physically touch Plaintiff JOSHUA MARTIZ but were present when other officers violated Plaintiff JOSHUA MARTIZ's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff JOSHUA MARTIZ, whose constitutional rights were being violated in their presence by other officers.

86. Defendants failed to intervene to prevent the unlawful conduct described herein.

87. As a result of the foregoing, Plaintiff JOSHUA MARTIZ's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to unlawful search and other physical constraints.

88. As a direct and proximate result of such acts, defendants deprived Plaintiff JOSHUA MARTIZ of his rights under the laws of the State of New York.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

91. As a result of the aforementioned conduct of defendants, Plaintiff JOSHUA MARTIZ sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-8802 Rights

92. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

93. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

94. The acts of Defendant Officers caused Plaintiff JOSHUA MARTIZ to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

95. The Defendant Officers, while in uniform, unlawfully used excessive force in punching Plaintiff JOSHUA MARTIZ in the face and tasing him.

96. The defendant Officers, while in uniform, unreasonable seized the Plaintiff JOSHUA MARTIZ and subjected him to approximately 48 hours of detention.

97. By reason of the acts and omissions by Defendants described above, Plaintiff JOSHUA MARTIZ has endured physical and emotional injuries and was otherwise damaged and injured.

NINTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-8802 Rights

98. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

99. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

100. Defendant Officers had a duty to protect Plaintiff JOSHUA MARTIZ from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

101. The Defendants that did not physically touch Plaintiff JOSHUA MARTIZ, but were present when other officers violated Plaintiff JOSHUA MARTIZ's AC 8-8802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff JOSHUA MARTIZ, whose constitutional rights were being violated in their presence by other officers.

102. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff JOSHUA MARTIZ from violation of his rights.

103. By reason of the acts and omissions by Defendants described above, Plaintiff JOSHUA MARTIZ has endured physical and emotional injuries and was otherwise damaged and injured.

TENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-8802 Rights

104. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at length herein.

105. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

106. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff JOSHUA MARTIZ for the wrongdoing of the covered individual Defendant Officers.

107. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

108. The acts of Defendant Officers caused Plaintiff JOSHUA MARTIZ to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and

seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

109. The Defendant Officers, while in uniform, unlawfully used excessive force in punching Plaintiff JOSHUA MARTIZ in the face and tasing him.

110. The defendant Officers, while in uniform, unreasonable seized the Plaintiff JOSHUA MARTIZ and subjected him to approximately 48 hours of detention.

111. By reason of the acts and omissions by Defendants described above, Plaintiff JOSHUA MARTIZ has endured physical and emotional injuries and was otherwise damaged and injured.

ELEVENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8802 Rights

112. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 112 with the same force and effect as if more fully set forth at length herein.

113. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

114. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff JOSHUA MARTIZ for the wrongdoing of the covered individual Defendant Officers.

115. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

116. Defendant Officers had a duty to protect Plaintiff JOSHUA MARTIZ from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

117. The Defendants that did not physically touch Plaintiff JOSHUA MARTIZ, but were present when other officers violated Plaintiff JOSHUA MARTIZ's AC 8-8802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff JOSHUA MARTIZ, whose constitutional rights were being violated in their presence by other officers.

118. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff JOSHUA MARTIZ from violation of his rights.

119. By reason of the acts and omissions by Defendants described above, Plaintiff JOSHUA MARTIZ has endured physical and emotional injuries and was otherwise damaged and injured.

TWELFTH CAUSE OF ACTION

Malicious Prosecution

120. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 119 with the same force and effect as if more fully set forth at length herein.

121. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

122. Defendants commenced and continued a criminal proceeding against the Plaintiff JOSHUA MARTIZ.

123. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff JOSHUA MARTIZ and for the charges for which they were prosecuted.

124. The prosecution and criminal proceedings terminated in Plaintiff JOSHUA MARTIZ's favor on the aforementioned dates.

125. Plaintiff JOSHUA MARTIZ was subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiff JOSHUA MARTIZ's Fourth Amendment rights.

126. As a direct and proximate result of such acts, defendants deprived Plaintiff JOSHUA MARTIZ of his rights under the laws of the State of New York and the United States Constitution.

127. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

128. As a result of the aforementioned conduct of defendants, Plaintiff JOSHUA MARTIZ sustained injuries, including but not limited to emotional, physical, economic, and psychological injuries.

THIRTEENTH CAUSE OF ACTION**Violation of Plaintiff's Fifth and Fourteenth Amendment Rights****Denial of Right to Fair Trial/Due Process**

129. The Plaintiff JOSHUA MARTIZ repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 128 with the same force and effect as if more fully set forth at length herein

130. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

131. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

132. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

133. In withholding/creating false evidence against Plaintiff JOSHUA MARTIZ and in providing/withholding information with respect thereto, defendants violated Plaintiff JOSHUA MARTIZ's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

134. As a result of the foregoing, Plaintiff JOSHUA MARTIZ sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

135. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

136. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

137. As a result of the aforementioned conduct of defendants, Plaintiff JOSHUA MARTIZ sustained injuries, including but not limited to emotional and psychological injuries.

FORTEENTH CAUSE OF ACTION**Assault**

138. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 137 with the same force and effect as if more fully set forth at length herein.

139. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff JOSHUA MARTIZ in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff JOSHUA MARTIZ, that such acts caused apprehension of such contact in the Plaintiff JOSHUA MARTIZ.

140. As a direct and proximate result of such acts, defendants deprived Plaintiff JOSHUA MARTIZ of her rights under the laws of the State of New York.

141. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

142. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

143. As a result of the aforementioned conduct of defendants, Plaintiff JOSHUA MARTIZ sustained injuries, including but not limited to emotional and psychological injuries.

FIFTEENTH CAUSE OF ACTION

Battery

144. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 144 with the same force and effect as if more fully set forth at length herein.

145. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff JOSHUA MARTIZ, when they, in a hostile and/or offensive manner, struck Plaintiff JOSHUA MARTIZ with a baton and threw her to the asphalt, and handcuffed her excessively tight, with the intention of causing harmful and/or offensive bodily contact to the Plaintiff JOSHUA MARTIZ and caused such battery.

146. As a direct and proximate result of such acts, defendants deprived Plaintiff JOSHUA MARTIZ of her rights under the laws of the State of New York.

147. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

148. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

149. As a result of the aforementioned conduct of defendants, Plaintiff JOSHUA MARTIZ sustained injuries, including but not limited to physical, emotional, and psychological injuries.

JURY DEMAND

150. Plaintiff JOSHUA MARTIZ hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff DOROTHEA MARTIZ as Attorney-in-Fact for JOSHUA MARTIZ demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 28, 2021

By: 
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TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
OFFICER OSCAR POLANCO, 4295 Broadway, NY, NY 10033
SERGEANT BENJAMIN PALEY, 315 Hudson Street, 3rd Floor, NY, NY 10013

VERIFICATION

STATE OF NEW YORK }
 } ss.:
COUNTY OF NEW YORK }

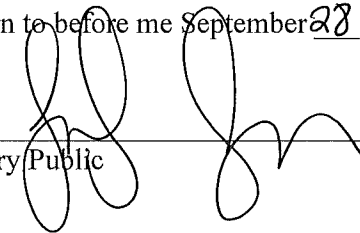
DOROTHEA MARTIZ, being duly sworn deposes and says:

I, DOROTHEA MARTIZ, have read the foregoing Summons and Complaint and know the contents thereof and verify that the foregoing responses are true.



DOROTHEA MARTIZ

Sworn to before me September 28, 2021



Notary Public